tam, Sagar and Jaain have not been charged with any violation of the FCPA on the counts mentioned in the indictment. "These directors have been charged on three counts in the criminal indictment, namely alleged securities fraud conspiracy, alleged wire fraud conspiracy, and alleged securities fraud," it said, adding that Count 1—conspiracy to violate the FCPA—names only Azure Power executives and CDPQ, a Canadian pension fund that is the largest shareholder of Azure Power. The Adani Group did not reply to queries on the subject sent by INDIA TODAY till the time of going to press.

Back in India, the charges of bribery and fraud could put the group under more public scrutiny. The ruling BJP would have hoped to start the winter session of Parliament on a high note after the National Democratic Alliance swept the Maharashtra assembly polls, but instead saw Opposition members disrupting proceedings, demanding a discussion on the Adani issue. Rahul Gandhi, leader of the Opposition in the Lok Sabha, called for Adani's arrest and senior Congress leader Jairam Ramesh reiterated the need for a joint parliamentary probe against the billionaire businessman. "Adani should be arrested immediately and his 'protector' Madhabi Puri Buch (markets regulator Securities and Exchange Board of India or Sebi's chairperson, who was alleged by Hindenburg to have close ties with Adani in its report earlier this year) should be probed," Rahul said. He went on to add: "But we know that he won't be arrested because the PM of India backs Adani, he is his protector...[Prime Minister] Modi says *ek hai to safe hai*. Modi and Adani are safe in India if they are one."

STATES CAUGHT OFF GUARD

Though the indictment implicated former chief minister Y.S. Jagan Mohan Reddy and, by association, his Yuvajana Sramika Rythu Congress Party (YSRCP), which was in power in Andhra Pradesh at that time, he can evade scrutiny unless the allegations are substantiated in court, say experts. Andhra discoms supply close to 12,500 MU (million units) of free power per annum to the agriculture sector and the state compensates them to the extent of the cost of supply. As a result, the government has, at various times, executed PPAs at exorbitant tariffs, unmindful of the impact on the state discoms. The cost of procuring power as a part of the supply cost had increased to nearly Rs 5.10 per kWh, making the subsidy cost very burdensome on the state.

Documents reviewed by INDIA TODAY reveal that Andhra received an offer from SECI on September 15, 2021, to supply 9 GW of power at a tariff of Rs 2.49 per kWh. The state then entered into an arrangement to procure 7 GW for a 25-year period. While Jagan remains tight-lipped on the issue, YSRCP has refuted the allegations, maintaining that procuring power at the competitive price led to a saving of Rs 3,700 crore.

Incumbent CM N. Chandrababu Naidu is guarded in his reaction to the alleged Adani-Jagan deal. "If wrongdoing has occurred, action must be taken. This is the only way to prevent such mistakes from happening again," he said in the assembly on November 22. Naidu also shared his concern about the damage to the reputation of the state. "The issue has severely harmed Andhra Pradesh's image. This deeply saddens me."

Similarly, an MoU was signed between the SECI and the Chhattisgarh State Power Distribution Company in August 2021. The then CM, Bhupesh Baghel of the Congress, also held the energy portfolio at that time. Adani Green Energy and Azure Power were to supply 2,000 MW and 1,000 MW respectively, at Rs 2.54 per KWh. "The Congress government did not sign an MoU with Adani. It was signed with the SECI. Adani was not a part of this MoU and neither were there any signatures of any Adani representatives," says Sushil Anand Shukla, a Congress spokesperson. But Pankaj Jha, media advisor to the current CM Vishnu Deo Sai of the BJP, says, "The case is not that an MoU was signed with Adani but that Adani

